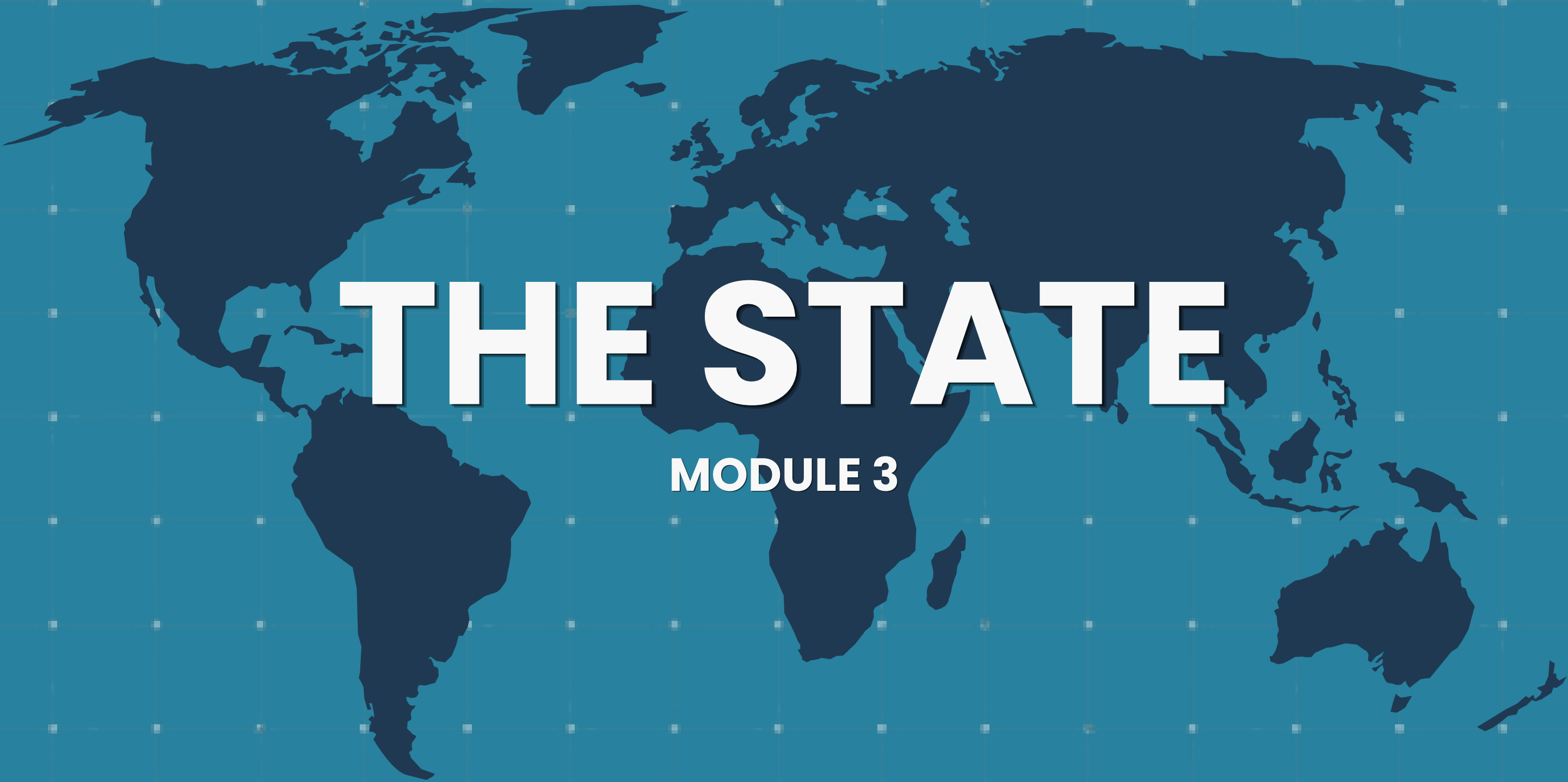




THE STATE

MODULE 3

ERNESTO STEPHEN C. GORDOVEZ
DE LA SALLE UNIVERSITY – DASMARIÑAS

Who makes rules that affect you?

**What happens when these rules
contradict each other? Whose rules
come first?**

“Sovereignty means that the state has **supreme authority** to make and enforce laws within its territorial space.”

ROSENBOIM 2023

In “Realism,” “The Globalization of World Politics”

Internal Sovereignty

basically, authority at home
no other domestic authority is superior to the State





Max Weber

...a state is a human community that successfully claims the **monopoly of the legitimate use of physical force within a given territory.**

Internal Sovereignty

basically, authority at home
no other domestic authority is superior to the State



Internal Sovereignty

basically, authority at home
no other domestic authority is superior to the State

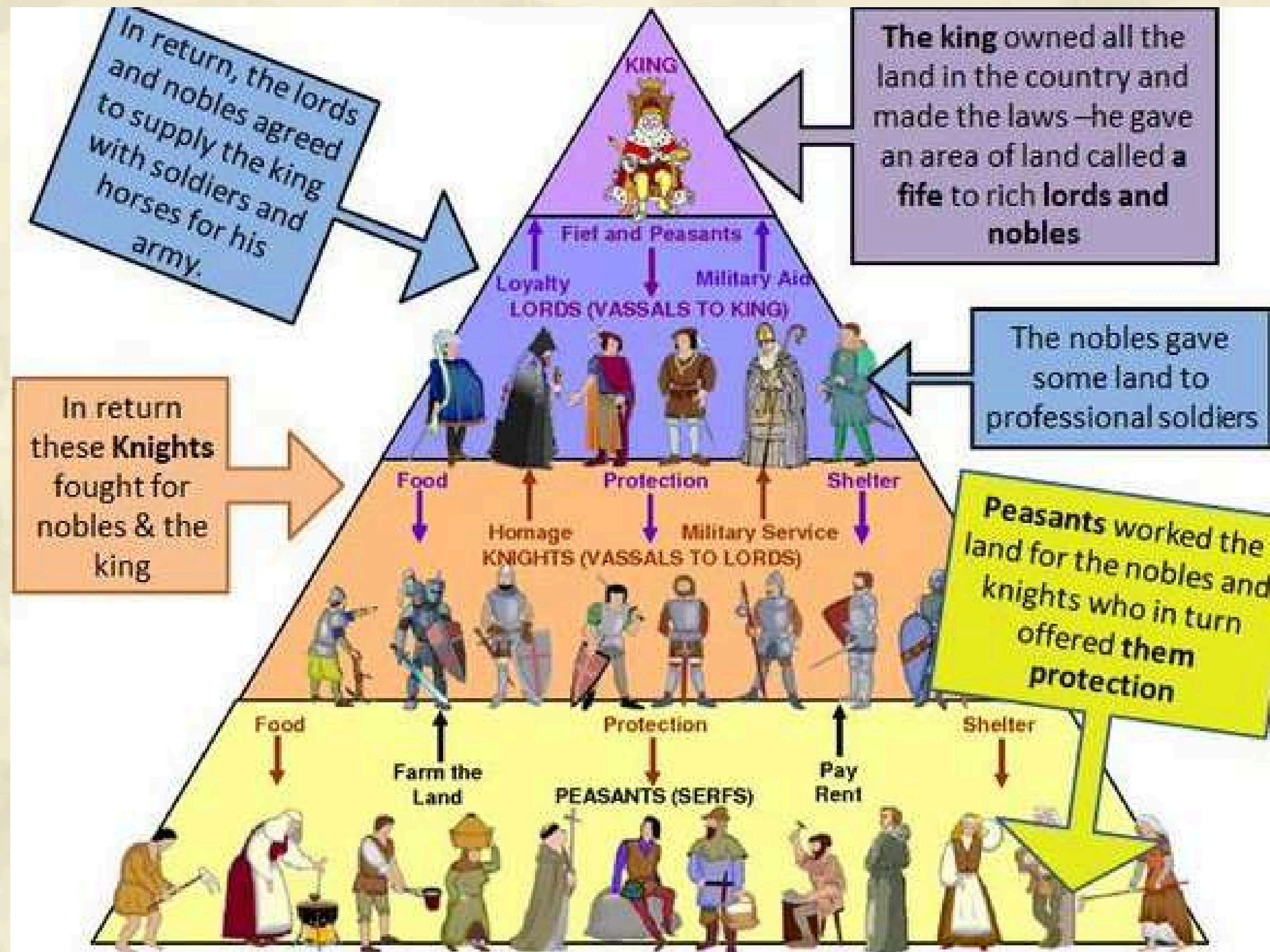
External Sovereignty

freedom from external control
no foreign authority has power over the State





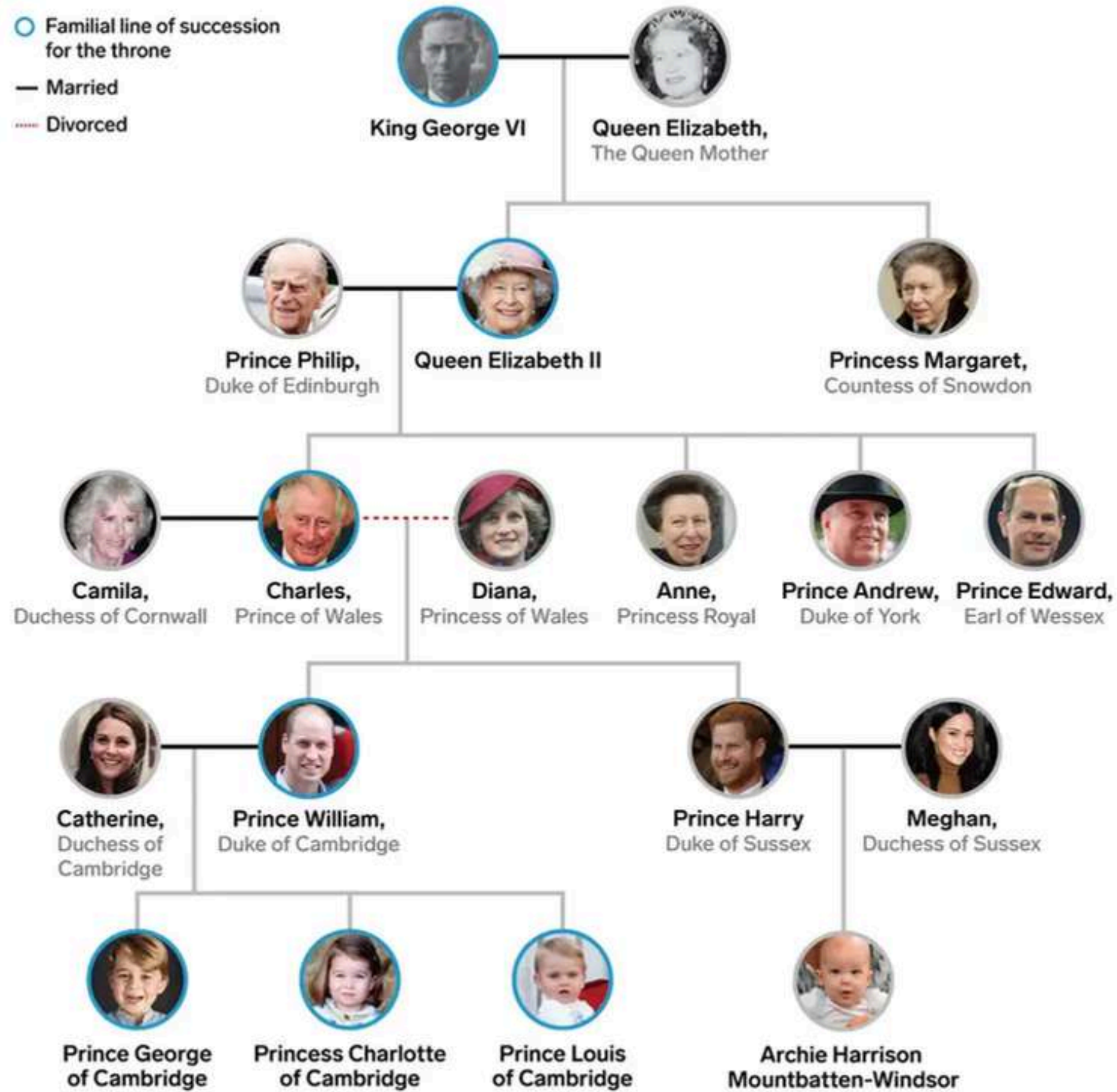




○ Familial line of succession for the throne

— Married

- - - Divorced





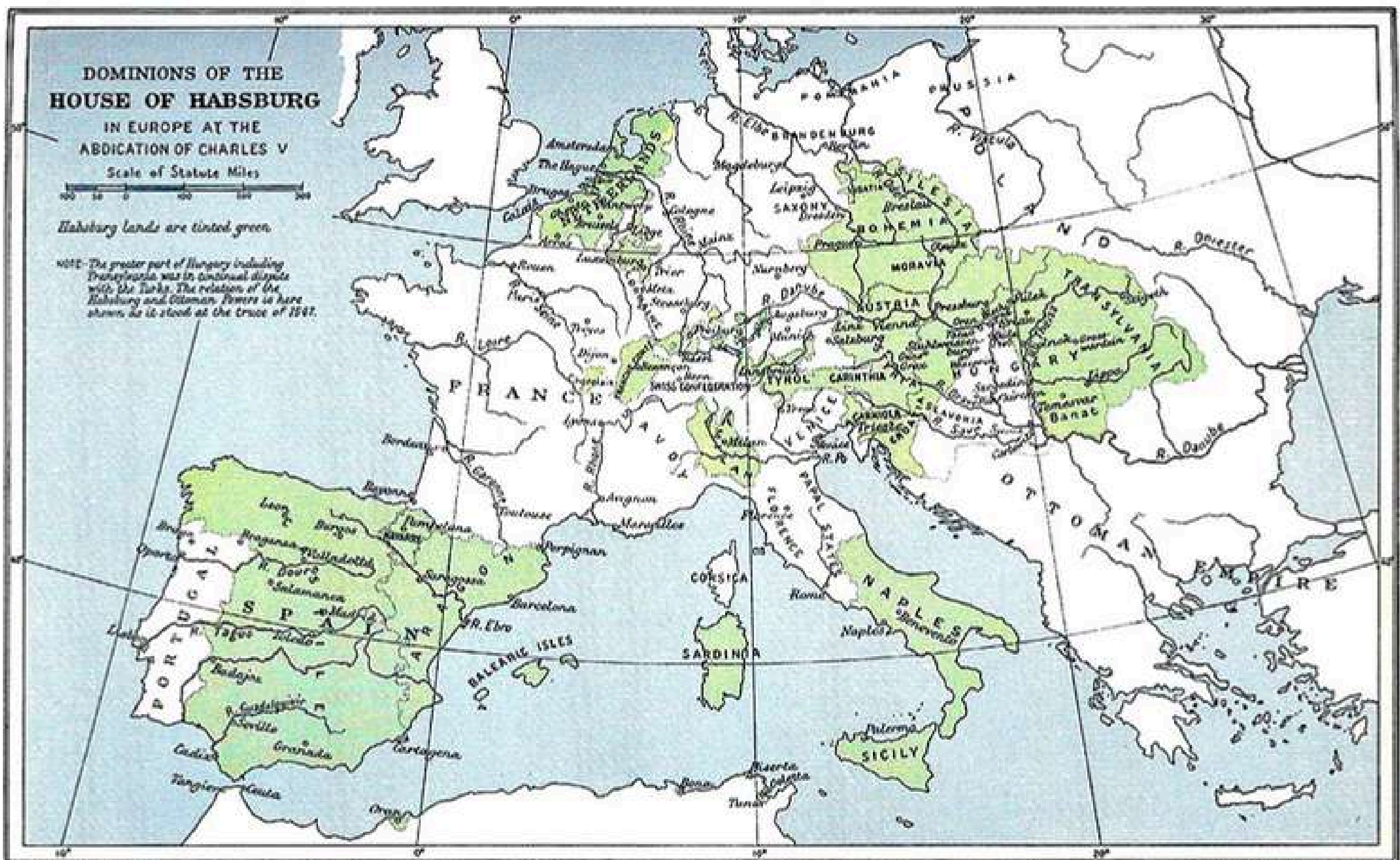
DOMINIONS OF THE HOUSE OF HABSBURG

IN EUROPE AT THE
ABDICATION OF CHARLES V



Habsburg lands are tinted green

NOTE: The greater part of Hungary including Transylvania was in continual dispute with the Turks. The relation of the Habsburg and Ottoman Powers is here shown as it stood at the truce of 1547.



Map 10





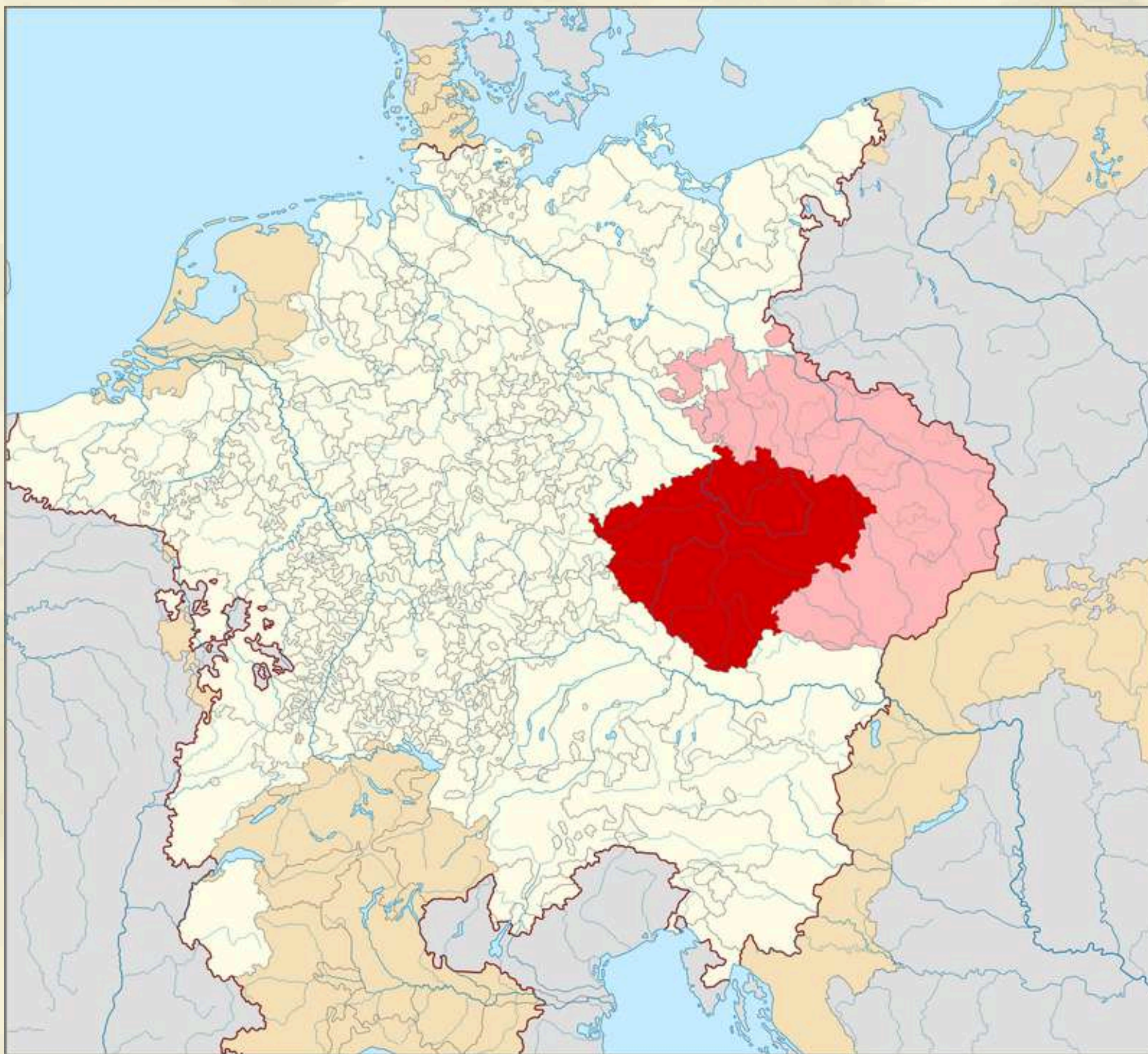
The state of the monarchy is the supremest thing upon the earth. For kings are not only God's lieutenants upon earth, and sit upon God's throne, but even by God himself they are called gods.

— King James I



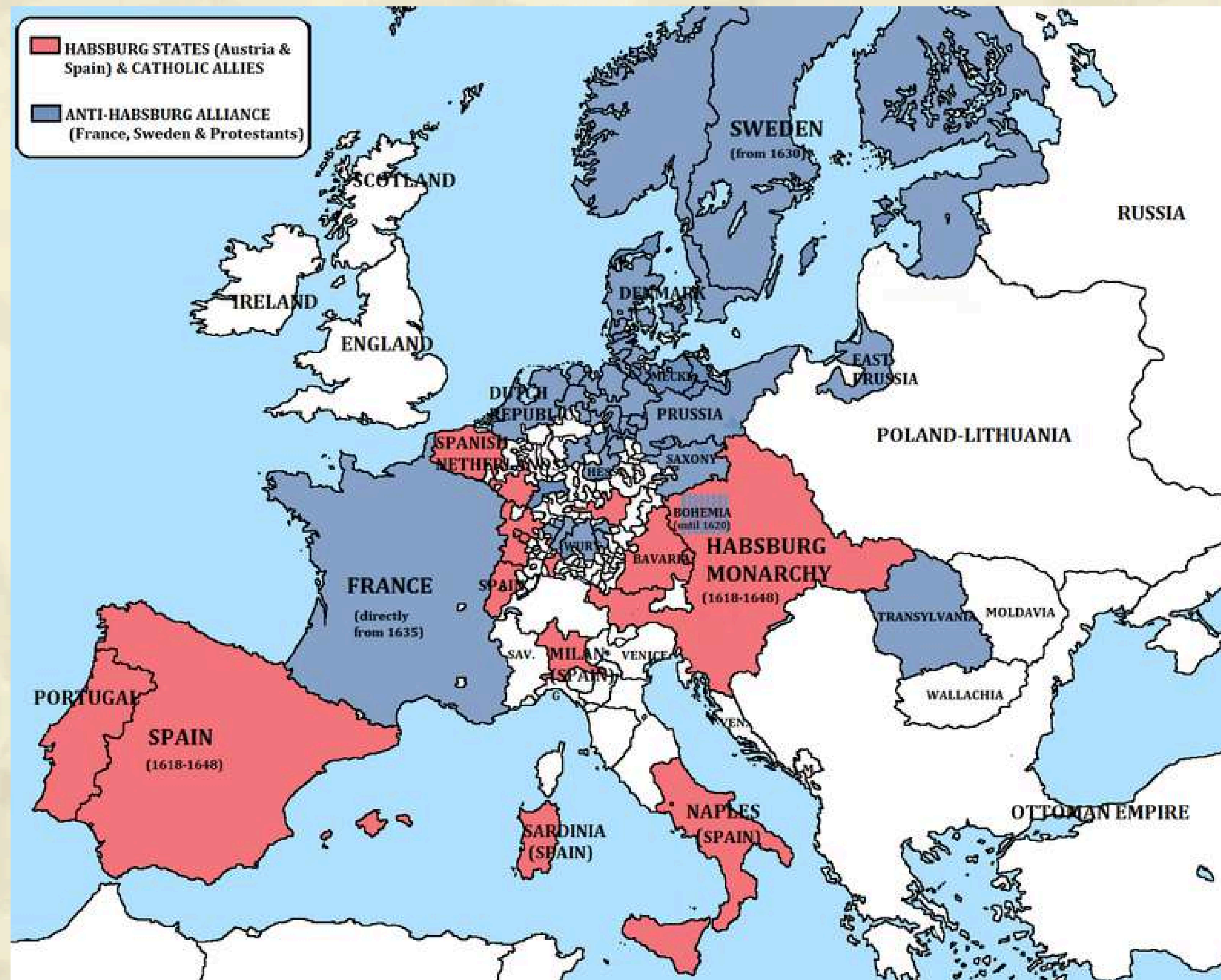
Crown kings
Depose kings
Assign territory
Collect tithes
Order crusades





Defenestration of Prague





1648 Peace of Westphalia



1648 Peace of Westphalia

Rex imperator in regno suo

The king is an emperor in his own
kingdom.

1648 Peace of Westphalia

To prevent for the future any differences arising in political matters... [all] are so established and confirmed in their ancient rights, prerogatives, liberties, privileges, free exercise of territorial right both in ecclesiastical and in political matters, in their lordships and sovereign rights, by virtue of this present transaction: that **they never can or ought to be molested therein by any whomsoever upon any manner of pretence.**

1648 Peace of Westphalia

Cuius regio, eius religio — whose realm, his religion; separation of church and state

Aequalitas exacta mutaque — a perfect and reciprocal equality between states



Pope Innocent X

Zelo Domus Dei
Zeal for the House of God



Rappler

8m · 🌐



Vatican officials and papal associates say Leo cares especially deeply about the treatment of immigrants and is unlikely to be deterred by criticism



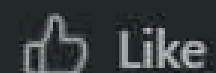
RAPPLER.COM

Pope Leo's critique of Trump ends honeymoon with conservative Catholics

Vatican officials and papal associates say Leo cares especially deeply about the treatment of i...



3



Like



Comment



Share



Max Weber

a compulsory political
association with
continuous operations....
[with] an administrative
staff [that] successfully
upholds the claim to the
monopoly of the
legitimate use of
physical force in the
enforcement of its social
order.



**James Wilford
Garner**

"...a state is a community of persons more or less numerous, permanently occupying a definite portion of territory, having a government of their own, to which the great body of inhabitants render obedience and enjoy freedom from external control."

1934 MONTEVIDEO CONVENTION ON THE RIGHTS AND DUTIES OF STATES

- Signed on December 26, 1933, entering into force the following year
- Established the standard definition of statehood under international law
- Adopted by the Seventh International Conference of American States

1934 MONTEVIDEO CONVENTION

Article 1.

The state as a person of international law should possess the following qualifications:

- a. a permanent population;
- b. a defined territory;
- c. government; and
- d. capacity to enter into relations with the other states.

1934 MONTEVIDEO CONVENTION

Article 2.

The political existence of the state is **independent of recognition by the other states**. Even before recognition the state has the right to defend its integrity and independence, to provide for its conservation and prosperity, and consequently to organize itself as it sees fit, to legislate upon its interests, administer its services, and to define the jurisdiction and competence of its courts. The exercise of these rights has no other limitation than the exercise of the rights of other states according to international law.

1934 MONTEVIDEO CONVENTION

Article 6.

The recognition of a state **merely signifies that the state which recognizes it accepts the personality of the other with all the rights and duties determined by international law.** Recognition is unconditional and irrevocable.

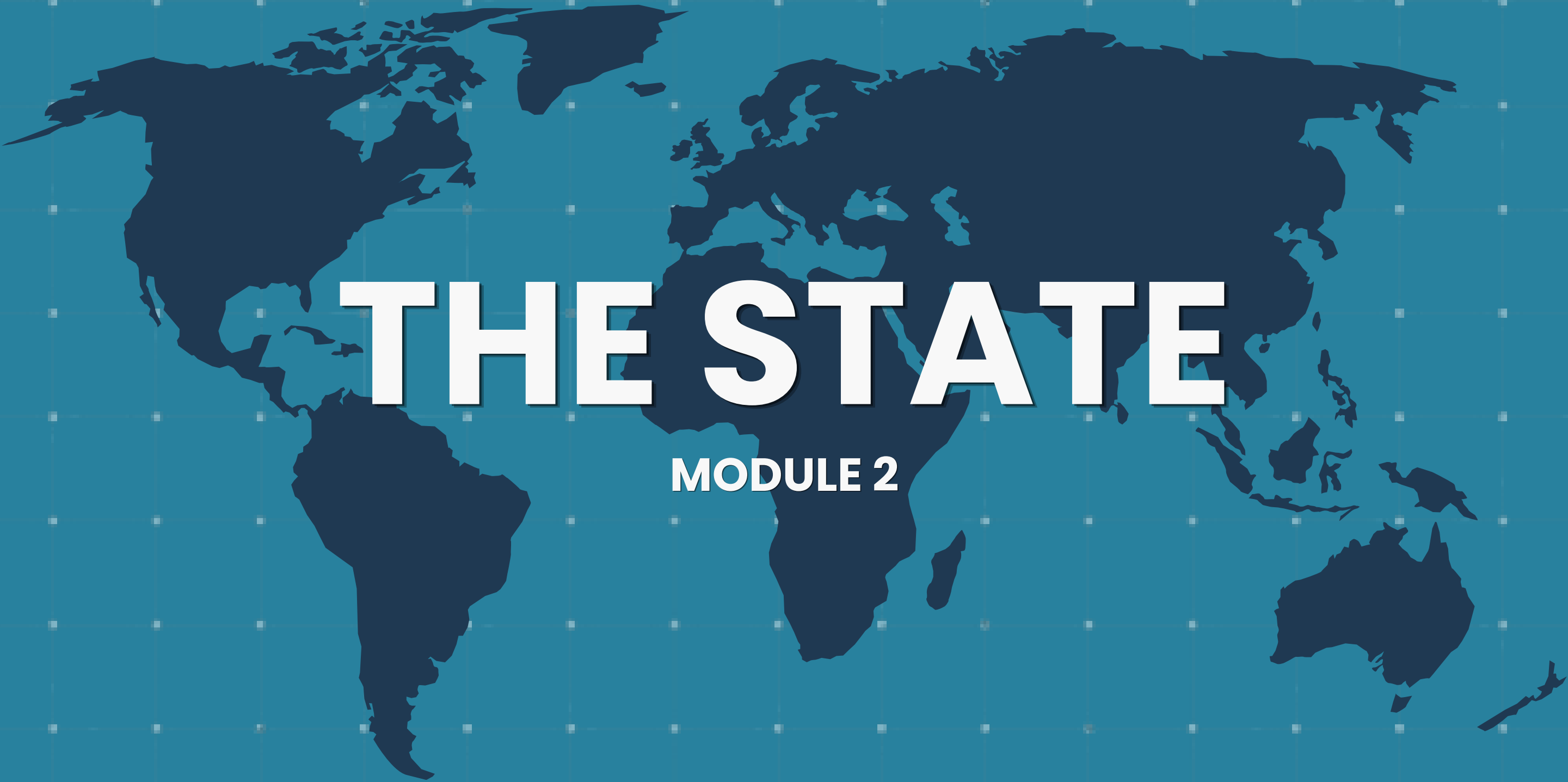




ARTICLE IV

GENERAL PRINCIPLE AND POLICIES

Section 1. Territorial Integrity and Allegiance. – The Bangsamoro Autonomous Region is an integral, indivisible, and inseparable **part of the territory of the Republic of the Philippines**. The Bangsamoro people shall uphold the Constitution as the fundamental law of the land and unequivocally **owe allegiance and fidelity to the Republic of the Philippines**.



THE STATE

MODULE 2

ERNESTO STEPHEN C. GORDOVEZ
DE LA SALLE UNIVERSITY – DASMARIÑAS



**James Wilford
Garner**

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Max Weber

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Internal Sovereignty

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Global Economic Interdependence

States' economies today increasingly depend on:

- international trade;
- foreign investment;
- global supply chains;
- international finance;
- decisions made by governments and firms elsewhere.

Global Economic Interdependence

A state may legally possess the authority to make economic decisions — but **how free is that choice when the consequences depend on actors outside its control?**

Global Economic Interdependence



World Trade Organization (WTO)

*['wər(-ə)ld 'trād
,ôr-gə-nə-'zā-shən]*

An international institution that oversees the rules governing global trade.

Global Economic Interdependence



Political and Economic Integration

States voluntarily create or join institutions that establish common rules.

Examples:

- ASEAN
- European Union
- WTO
- regional trade agreements

Political and Economic Integration

If states voluntarily accept common rules, has sovereignty been weakened?

Political and Economic Integration



World Trade Organization (WTO)

*['wər(-ə)ld 'trād
,ôr-gə-nə-'zā-shən]*

An international institution that oversees the rules governing global trade.

Political and Economic Integration



International Law and Universal Principles

International law and universal principles place states within a wider system of rules and norms that can limit how they exercise sovereignty, especially in areas such as human rights, war, and the treatment of citizens.

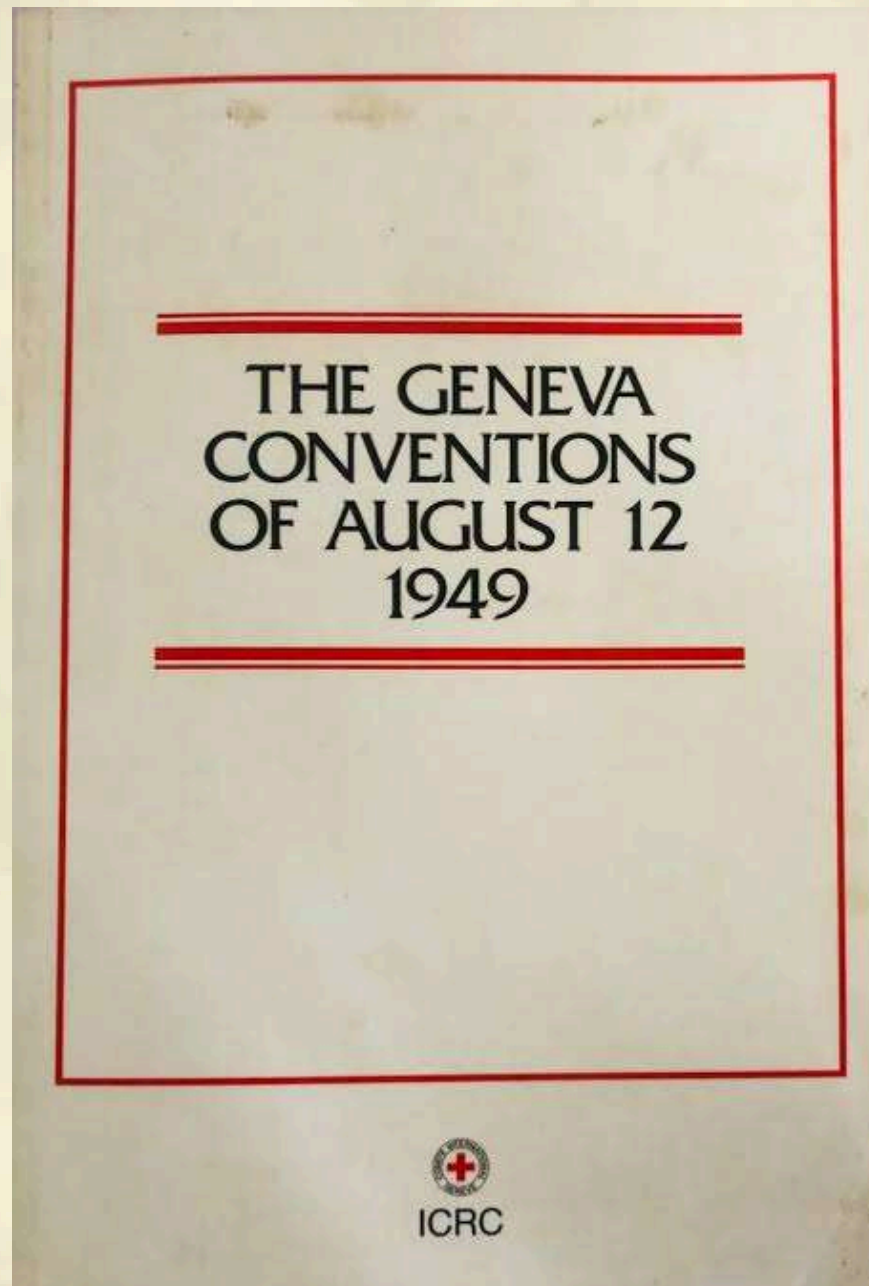
International Law and Universal Principles

ARTICLE II

Declaration of Principles and State Policies
Principles

SECTION 2. The Philippines renounces war as an instrument of national policy, **adopts the generally accepted principles of international law as part of the law of the land and adheres to the policy of peace, equality, justice, freedom, cooperation, and amity with all nations.**

International Law and Universal Principles



Communication Networks

Communication networks allow information, ideas, and political activity to move across borders almost instantly, making them harder for states to control within their territory. They also empower citizens and non-state actors to organize, communicate, and influence politics beyond traditional state institutions.

Communication Networks

Where does state jurisdiction end when the activity itself has no clear territorial location?

Communication Networks



Communication Networks



Transnational Activism

Transnational activism allows individuals and organizations to coordinate political action across national borders, often bypassing or pressuring governments from outside traditional state institutions. Through international advocacy networks, local issues can become global campaigns that influence public opinion, policy, and state behavior.

Transnational Activism

If political pressure can be organized across borders and beyond state control, how sovereign can a state really be?

Transnational Activism



Transnational Activism

Human Rights Watch investigates and reports on abuses happening in all corners of the world. We are roughly 500 people of 70-plus nationalities who are country experts, lawyers, journalists, and others who work to protect the most at risk, from vulnerable minorities and civilians in wartime, to refugees and children in need. **We direct our advocacy towards governments, armed groups and businesses, pushing them to change or enforce their laws, policies and practices.**

The logo for Human Rights Watch is a blue rectangle containing the words "HUMAN RIGHTS WATCH" in white, uppercase, sans-serif font, arranged in three lines.

H U M A N
R I G H T S
W A T C H

Transnational Activism

